

Government by Consent: Locke's Case Against Absolute Power

An original lesson plan inspired by **John Locke's** *Second Treatise of Government* (Project Gutenberg). Not affiliated with or endorsed by Project Gutenberg or John Locke. Explore the original course: <https://www.gutenberg.org/ebooks/7370>

GRADE LEVEL	DURATION	TOPICS
Grades 11-12 / Intro College	60 minutes	Political Philosophy

“Locke argues that legitimate government rests on the consent of the governed and exists to protect natural rights, and that when it fails to do so, the people may rightfully replace it. Is government by consent a realistic foundation for political authority, or a convenient fiction?”

Learning Objectives

By the end of this lesson, students will be able to:

- Explain Locke's state of nature and how it differs from Hobbes's, particularly regarding natural law and natural rights to life, liberty, and property.
- Trace Locke's account of how legitimate government arises from the consent of the governed to protect natural rights, and explain his labor theory of property.
- Evaluate Locke's argument that a government which violates the trust placed in it can be justly resisted or dissolved by the people.

Materials Needed

- Whiteboard
- Excerpt handout: *Second Treatise* selections from Chapter 2 (state of nature), Chapter 5 (property), and Chapter 19 (dissolution of government)
- Case-study cards: a government seizing property without due process, and a government dissolving the legislature to rule by decree
- Venn diagram handout comparing Hobbes's and Locke's states of nature

Lesson Procedure

Hook: What Do You Own, and Why?

8 min

Ask students to identify something they own and justify, in one or two sentences, why it's rightfully theirs. Collect a few answers on the board and note recurring themes, such as 'I made it' or 'I worked for it,' to set up Locke's labor theory of property.

Direct Instruction: Natural Rights and the Labor Theory of Property

18 min

Present Locke's state of nature as governed by a law of nature (reason) forbidding harm to others' life, liberty, health, or possessions, in contrast to Hobbes's war of all against all. Explain the natural rights to life, liberty, and property, and the labor theory of property: mixing one's labor with unowned nature creates a property right, subject to the proviso of leaving 'enough and as good' for others.

Small-Group Reading and Mapping

15 min

In groups, students read the assigned excerpts on consent and dissolution and map Locke's argument: why people leave the state of nature (its 'inconveniences,' including the lack of an impartial judge), how government by consent is formed to adjudicate disputes and protect rights, and how government holds its power only in trust.

Whole-Class Case Analysis

13 min

Apply Locke's 'dissolution of government' argument to the case cards: does a government seizing property without due process, or dissolving the legislature to rule by decree, break the trust placed in it and justify resistance? What would Locke say, and on what grounds?

Closure

6 min

Return to the hook and the essential question: is consent to government real or fictional, given that most people never explicitly agreed to be governed?

Discussion Questions

- 1 Locke says legitimate government rests on the 'consent of the governed,' but most people never explicitly signed any contract. Does Locke's notion of 'tacit consent,' such as by owning property or using public roads, really establish genuine consent?
- 2 How does Locke's labor theory of property justify private ownership, and does the requirement to leave 'enough and as good' for others still make sense once land and resources become scarce?
- 3 Locke's state of nature is governed by a law of nature that mostly protects rights, unlike Hobbes's state of war. Which picture of human nature and pre-political life do you find more plausible, and why does the difference matter for the two thinkers' conclusions about government?
- 4 Locke argues that a government which violates its trust may be justly resisted by the people. What makes a government's actions serious enough to justify this, according to Locke, and who decides?
- 5 Locke's ideas heavily influenced the American Declaration of Independence. Which specific Lockean ideas can you identify in that document, and are they applied consistently?



Assessment

Students write a short brief, in the voice of a lawyer, arguing whether a specific government action (drawn from the case cards or a current event you supply) violates the Lockean trust between government and the governed severely enough to justify resistance, citing specific claims from the assigned Second Treatise excerpts.

Extension Activity

Have students locate three phrases or ideas in the U.S. Declaration of Independence that echo specific Lockean claims from the assigned excerpts, such as natural rights, consent, or the dissolution of government, and write a short annotation explaining each parallel.

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